

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Dov Levavi	Team: Team # 2	CCRB Case #: 201113004	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/28/2011 10:45 PM	Location of Incident: In front of § 87(2)(b)	Precinct: 46	18 Mo. SOL 3/28/2013	EO SOL 3/28/2013	
Date/Time CV Reported Wed, 09/28/2011 10:35 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/05/2011 3:16 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jeffrey Griffin	00443	934963	046 PCT
2. POM Kyle Coppola	26255	945613	046 PCT
3. An officer			

Officer(s)	Allegation	Investigator Recommendation
A.POM Kyle Coppola	Force: PO Kyle Coppola used pepper spray against § 87(2)(b)	
B.POM Kyle Coppola	Force: PO Kyle Coppola struck § 87(2)(b) with a baton.	
C.POM Kyle Coppola	Force: PO Kyle Coppola used physical force against § 87(2)(b)	
D.POM Jeffrey Griffin	Force: PO Jeffrey Griffin used physical force against § 87(2)(b)	
E.POM Kyle Coppola	Abuse: PO Kyle Coppola refused to provide his shield number to § 87(2)(b)	
F.POM Jeffrey Griffin	Discourtesy: PO Jeffrey Griffin spoke rudely to § 87(2)(b)	
G. An officer	Abuse: An officer did not obtain medical treatment for § 87(2)(b)	

Case Summary

On September 28, 2011, § 87(2)(b) called the IAB command center to file a complaint (log #12-44420) that was received by the CCRB on October 5, 2011. At approximately 10:45 p.m. on September 28, 2012, § 87(2)(b) was in front of § 87(2)(b) with her fiancé, § 87(2)(b) and friend, § 87(2)(b). PO Kyle Coppola and PO Jeffrey Griffin responded to the scene regarding a call about a dispute. § 87(2)(b) was arrested for criminal possession of a weapon and § 87(2)(b) was arrested for obstructing governmental administration. The following allegations resulted:

- **Allegation A – Force: PO Kyle Coppola used pepper spray against § 87(2)(b)**
§ 87(2)(g)
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- **Allegation B – Force: PO Kyle Coppola struck § 87(2)(b) with a baton.**
- **Allegation C – Force: PO Kyle Coppola used physical force against § 87(2)(b)**
- **Allegation D – Force: PO Jeffrey Griffin used physical force against § 87(2)(b)**
§ 87(2)(g)
.
- **Allegation E – Abuse of Authority: PO Kyle Coppola refused to provide his shield number to § 87(2)(b)**
§ 87(2)(g)
.
- **Allegation F – Discourtesy: PO Jeffrey Griffin spoke rudely to § 87(2)(b)**
§ 87(2)(g)
.
- **Allegation G – Abuse of Authority: An officer did not obtain medical treatment for § 87(2)(b)**
§ 87(2)(g)
.

This case was initially assigned to Inv. Magdalena Skowron-Muco. Upon her resignation, it was reassigned to Inv. Dov Levavi on May 16, 2012.

Results of Investigation

Civilian Statement(s)

Victim: § 87(2)(b)

- A Hispanic male who is 5'8" tall, weighing 170 pounds with black hair and brown eyes, § 87(2)(b) was § 87(2)(b) at the time of the incident.

CCRB Testimony

On June 13, 2012, due to his incarceration in § 87(2)(b), § 87(2)(b) was interviewed by telephone (encl. b11-15) regarding the incident that occurred at approximately 10:45 p.m. on September 28, 2011 at § 87(2)(b) in the Bronx. § 87(2)(b) had been inside § 87(2)(b) with § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not consume any drugs or alcohol and there was no domestic dispute of which he was aware.

§ 87(2)(b) went downstairs with § 87(2)(b) who carried an open container of alcohol. When they reached the front lobby area of the building, § 87(2)(b) and § 87(2)(b) encountered PO Kyle Coppola and PO Jeffrey Griffin. The officers said that they were there for a call about a domestic dispute and took § 87(2)(b) aside. They asked § 87(2)(b) about the open container and PO Coppola frisked him while telling § 87(2)(b) to stand back. § 87(2)(b) did not argue with the officers. § 87(2)(b) was handcuffed and placed under arrest for the open container. § 87(2)(b) complied with the officers and did not try to get away from them. The officers spoke aggressively, although § 87(2)(b) did not recall what they said. § 87(2)(b) asked if he could give his personal belongings, including his jewelry, money, and car keys, to § 87(2)(b). However, the officers did not allow this and said the property would have to be vouchered. PO Coppola screamed and told § 87(2)(b) to step away, which he did. At the time, § 87(2)(b) was about seven to ten feet away from § 87(2)(b). He made no physical contact with § 87(2)(b) or either officer, and he did not attempt to prevent the arrest of § 87(2)(b).

PO Coppola then pulled out a can of pepper spray, said, "Back up, back up," and sprayed it at § 87(2)(b). The pepper spray made contact only with § 87(2)(b)'s shirt and he jumped back. He took the shirt off and walked away toward the street in front of the building. He then waited against the wall in front of the building until PO Coppola and PO Griffin brought § 87(2)(b) to a police vehicle about fifteen feet away and placed him inside. After placing § 87(2)(b) in the vehicle, PO Coppola pulled out a metal baton and rushed at § 87(2)(b) while saying "What did I tell you? What did I say?" § 87(2)(b) described the object in PO Coppola's hand as an extendable asp; however, PO Coppola later stated that he had used his baton.) PO Coppola rushed at § 87(2)(b) and swung at him with the baton, making contact with § 87(2)(b)'s left arm, near his shoulder. § 87(2)(b) tried to block himself as PO Coppola continued to swing the baton between five and ten times, making contact with § 87(2)(b)'s arms and back. § 87(2)(b) did not throw any punches at PO Coppola or kick him.

PO Griffin approached § 87(2)(b) from the side and attempted, with PO Coppola, to bring § 87(2)(b) to the ground. When § 87(2)(b) was down on one knee on the ground, PO Coppola attempted to swing the baton at him more, but § 87(2)(b) grabbed the baton and held it. In response, PO Coppola punched § 87(2)(b) about three to five times in the back of his head.

with his right hand. While doing this, PO Coppola injured his finger. § 87(2)(b) fell down on his right side, keeping his right arm underneath him and holding onto the baton. PO Griffin held onto § 87(2)(b)'s legs. When PO Coppola let go of the baton, § 87(2)(b) threw it across the street. He did not swing the baton at PO Coppola. § 87(2)(b) who had come outside and was watching the incident, yelled at the officers to stop, but they ignored her.

§ 87(2)(b) saw that about four additional uniformed officers had arrived and stopped resisting as PO Griffin handcuffed him. § 87(2)(b) did not know if the additional officers witnessed the force used by PO Coppola. § 87(2)(b) was transported to the 46th Precinct stationhouse by PO3, a Hispanic female in uniform and another officer whose appearance § 87(2)(b) did not recall. § 87(2)(b) was transported in a separate vehicle and they were placed together in the cells at the stationhouse.

When he was in the cell area in the stationhouse, § 87(2)(b) asked, PO4, a white male officer in his thirties who had dark hair and a light complexion, for medical assistance. PO4 placed § 87(2)(b) in a cell and did not obtain medical treatment for him. § 87(2)(b) was in the cell area at this time. § 87(2)(b) was charged with § 87(2)(b). The case was later dismissed and § 87(2)(b) was released.

§ 87(2)(b) sustained welts to his back, bruises on his head and a swollen left wrist, which may have been caused by the handcuffs. Within two days after the incident, § 87(2)(b) received treatment at § 87(2)(b) in Manhattan.

Complainant/Victim: § 87(2)(b)

• § 87(2)(b) 5'6" tall, 160 pound, Hispanic female with brown hair and brown eyes. § 87(2)(b) declined to provide her employment information.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on December 5, 2011 (encl. b5-10). § 87(2)(b)

§ 87(2)(b) had gone to the location with § 87(2)(b) and § 87(2)(b) because her godson's mother, § 87(2)(b) § 87(2)(b) lived there and § 87(2)(b) was informed of a domestic violence incident that occurred there. § 87(2)(b) feared for the safety of an infant at the location. Upon arrival, she observed that § 87(2)(b) was intoxicated so she put her to bed and put the infant to sleep. Then, § 87(2)(b) and § 87(2)(b) left the apartment. At an unknown time, § 87(2)(b)'s boyfriend, § 87(2)(b), placed a call to 911 reporting the incident at the apartment. § 87(2)(b) was not present at the time of the incident.

PO Griffin and PO Coppola, when they first encountered the group, asked if they were coming from § 87(2)(b) where the altercation was reported to have occurred, and § 87(2)(b) stated that they were. When they saw § 87(2)(b)'s open container of beer, PO Griffin and PO Coppola searched § 87(2)(b)'s pockets and handcuffed him. § 87(2)(b) and § 87(2)(b) asked what was happening. § 87(2)(b) did not see whether anything was recovered from § 87(2)(b)'s pants by the officers because she was trying to keep § 87(2)(b) away from the officers. § 87(2)(b) pushed § 87(2)(b) away from the officers because he was recently released from prison and was on parole, and she did not want him to be arrested again. Neither § 87(2)(b) nor § 87(2)(b) took any physical actions toward the officers. From a distance, PO Coppola sprayed pepper spray in the direction of § 87(2)(b) and § 87(2)(b).

The pepper spray only seemed to make contact with § 87(2)(b)'s shirt. One of the officers called for backup. A female security guard, whose name § 87(2)(b) did not know, witnessed the incident.

After placing § 87(2)(b) in the vehicle, PO Coppola approached § 87(2)(b) while § 87(2)(b) stood between them. The officers brought § 87(2)(b) to the ground. PO Coppola drew his baton and repeatedly struck § 87(2)(b) with the baton all over § 87(2)(b)'s body as § 87(2)(b) lay in a fetal position. PO Griffin pushed § 87(2)(b)'s face with the open palm of one of his hands and then shoved § 87(2)(b) out of the way with both hands. § 87(2)(b) stumbled back. She did not fall and was not injured. PO Griffin bent over § 87(2)(b) while PO Coppola sat on top of him. § 87(2)(b) grabbed the baton and threw it into the street. § 87(2)(b) did not strike or attempt to strike the officers. § 87(2)(b) did not know whether the officers issued any verbal orders to § 87(2)(b) because she was calling 911 and requesting IAB at the time. PO Coppola punched § 87(2)(b) "towards his face," although § 87(2)(b) did not recall how many times and did not specify if the punches made contact with § 87(2)(b). She could not see if § 87(2)(b) was bleeding. PO Coppola shook his own hand as if it was injured.

§ 87(2)(b) requested the officers' badge numbers. PO Coppola remained quiet while PO Griffin stated, "Fuck you," and, "Get the fuck out of my face" and repeatedly stated "443." § 87(2)(b) considered this to be the officers' refusal to provide his badge number because § 87(2)(b) expected to be provided with a four digit number.

At the time of her interview, § 87(2)(b) provided photographs of § 87(2)(b) which she stated were taken a day after the incident, and which she stated show injuries caused by PO Coppola's use of force. (encl. b9)

Attempts to Contact Civilians

- On February 7, 2012 and February 14, 2012, two unreturned letters were sent to § 87(2)(b)'s address in order to contact him as a witness. However, § 87(2)(b) did not respond to these contact attempts. Attempts were made to contact § 87(2)(b) at a telephone number found through Lexis Nexis, but the number was not in service. No other telephone numbers were obtained for him.
- On July 12, 2012, attempts were made to contact the security office for the NYCHA development at § 87(2)(b). However, a number found online for the development—which was also later provided by the NYCHA Bronx Borough Management office—was not in operation. Therefore, no security guards could be contacted as witnesses.

NYPD Statement(s):

Subject Officer: PO KYLE COPPOLA

- *A white male who is 5'6" tall, weighing 170 pounds with black hair and brown eyes, PO Coppola was § 87(2)(b) old at the time of the incident.*
- *PO Coppola worked from 3:00 p.m. to 11:35 p.m. assigned to sector patrol with PO Jeffrey Griffin. He was in uniform and was assigned to a marked RMP.*

Memo Book

- 10:30 p.m., Family dispute at § 87(2)(b); 10:45 p.m., Two arrests for § 87(2)(b); 10:50 p.m., Transporting two males, arrived at stationhouse.

§ 87(2)(b) § 87(2)(b) § 87(2)(b) 11:15 p.m., Transported to hospital by EMS for right thumb LOD. (encl. c1-3)

CCRB Statement

PO Kyle Coppola was interviewed at the CCRB on July 24, 2012 (encl. c4-6). At approximately 10:45 p.m. on September 28, 2011, at § 87(2)(b) in the Bronx, PO Coppola and PO Griffin responded to a radio call regarding a domestic dispute at § 87(2)(b). As they arrived, they saw § 87(2)(b) and § 87(2)(b) exiting the building. § 87(2)(b) carried an open container of alcohol. The officers stopped § 87(2)(b) and asked him where he was coming from, and discovered that he had come from the apartment to which they had been called to respond. PO Coppola asked § 87(2)(b) if he had a fight with his girlfriend and he said no. PO Coppola asked for § 87(2)(b)'s ID and conducted a frisk. During the frisk, PO Coppola heard the sound of something hitting the ground and noticed that a knife had fallen from § 87(2)(b)'s pocket onto the ground. PO Coppola decided to arrest § 87(2)(b) who complied as he was placed in handcuffs. PO Coppola did not recall if § 87(2)(b) or § 87(2)(b) appeared intoxicated. Once § 87(2)(b) was placed in handcuffs, § 87(2)(b) and § 87(2)(b) verbally protested.

PO Coppola asked § 87(2)(b) and § 87(2)(b) to leave the area and explained that § 87(2)(b) would likely receive a summons at the precinct and be released. However, they both refused to leave, continued to protest and used profanities toward PO Coppola. § 87(2)(b) pushed PO Coppola in the chest. However, PO Coppola let this go because he did not want to leave PO Griffin alone with § 87(2)(b) who was about 6'4" and 220 pounds. PO Coppola asked § 87(2)(b) and § 87(2)(b) about 4-5 times to leave the area. When they refused, PO Coppola took out his pepper spray and discharged a short burst of the spray in the air. He did not intend for the spray to make contact with § 87(2)(b) and § 87(2)(b) who were about 15 feet away at the time, and he did not believe that it made contact. The spray was effective in causing them to leave the area.

As PO Coppola and PO Griffin brought § 87(2)(b) to their vehicle, § 87(2)(b) returned and stood between the officers and the vehicle. His demeanor was angry and combative. He yelled and assumed a fighting stance. PO Coppola asked § 87(2)(b) to leave, but he refused. PO Coppola and PO Griffin decided to place § 87(2)(b) under arrest. As they grabbed § 87(2)(b) he resisted by yelling, flailing his arms and kicking. They all fell to the ground, which caused PO Coppola to injure his thumb as he hit the ground. § 87(2)(b) continued to resist while on the ground by kicking and swinging his arms. PO Coppola drew his baton and struck § 87(2)(b) in non-lethal areas, including his knees and thighs. He did not recall how many times he struck § 87(2)(b) with the baton. § 87(2)(b) grabbed the baton and threw it into the street. PO Coppola punched § 87(2)(b) in non-lethal areas in order to get him under control, although he did not recall exactly where or how many times. He did not recall punching § 87(2)(b) in the back of his head. After several minutes, the officers were able to get § 87(2)(b) under control and he was handcuffed.

Neither PO Coppola nor PO Griffin made physical contact with § 87(2)(b) at any point during the incident. During the struggle, she yelled at the officers and called 911. Once § 87(2)(b) was handcuffed, § 87(2)(b) asked PO Griffin for his shield number, which he provided at least four or five times. PO Coppola believed that she also asked him for his shield number and he provided it. PO Coppola denied telling § 87(2)(b) "Fuck you," or, "Get the

fuck out of my face.” He did not recall PO Griffin making those statements and he did not recall hearing any profanities being used toward § 87(2)(b)

PO Coppola did not see any injuries to § 87(2)(b) and did not hear § 87(2)(b) complain of injuries. Following his arrest, additional officers arrived at the scene to transport § 87(2)(b) to the 46th Precinct stationhouse while PO Coppola and PO Griffin transported § 87(2)(b). In the vehicle, PO Coppola asked § 87(2)(b) if he needed an ambulance and he stated that he did not. After bringing § 87(2)(b) to the stationhouse, PO Coppola went straight to the hospital. He did not hear § 87(2)(b) ask any officer for medical attention.

Subject Officer: PO JEFFREY GRIFFIN

- *A white male who is 6’0” tall, weighing 235 pounds with brown hair and blue eyes, PO Griffin was § 87(2)(b) old at the time of the incident.*
- *PO Coppola worked from 3:00 p.m. to 11:35 p.m. assigned to sector patrol with PO Kyle Coppola. He was in uniform and was assigned to a marked RMP.*

Memo Book

- 10:30 p.m., Family dispute at § 87(2)(b) 10:45 p.m., Two arrests made for § 87(2)(b)
§ 87(2)(b) 10:50 p.m., Arrived at stationhouse. Defendant 1: § 87(2)(b)
Defendant 2: § 87(2)(b) (encl. c7-10)

CCRB Statement

PO Jeffrey Griffin was interviewed at the CCRB on July 24, 2012 (encl. c11-13). § 87(2)(g)

When the officers saw § 87(2)(b)'s open container, they asked him to stop but he ignored them, kept walking, exited the building and threw the beer bottle on the ground. § 87(2)(b) complied as he was handcuffed, but § 87(2)(b) and § 87(2)(b) argued with the officers and refused to leave when asked by both officers and told that they would be placed under arrest if they did not. They both used profanities, although PO Griffin did not recall exactly what they said. PO Coppola confronted § 87(2)(b) who shoved PO Coppola in his shoulder and then took a few steps back while still facing PO Coppola. PO Coppola discharged his pepper spray at § 87(2)(b) who turned and fled. It appeared to PO Griffin that the pepper spray missed § 87(2)(b). PO Coppola gave chase, but then returned to § 87(2)(b) and PO Griffin after § 87(2)(b) turned around a corner. Although he had been compliant until that point, § 87(2)(b) pushed off the wall with his chest while PO Griffin held him against the wall, so PO Coppola came back to assist PO Griffin.

As the officers began to place § 87(2)(b) in the vehicle, § 87(2)(b) stepped within about two feet of the officers and assumed a “defensive” stance as if he was going to fight the officers, with his hands out in front of him and fists clenched. PO Griffin grabbed § 87(2)(b) and attempted to place his hands behind his back, at which point § 87(2)(b) resisted by refusing to provide his hands. PO Griffin managed to handcuff one of § 87(2)(b)'s hands behind his back and § 87(2)(b) placed his other hand in his waistband. PO Griffin told § 87(2)(b) several times to stop resisting and to place his hands behind his back, but he refused and fell to the ground stomach-first along with the officers. § 87(2)(b) continued resist and refused to provide his free hand to PO Griffin. He also pulled away the hand that was handcuffed. PO Coppola drew his baton and struck § 87(2)(b) in his rear shoulder several times (PO Griffin did not recall how many times) while PO Griffin told him to stop resisting. It took about thirty seconds to get

§ 87(2)(b) handcuffed after he fell to the ground. PO Griffin did not punch § 87(2)(b) in the head and he did not recall if PO Coppola did so.

After § 87(2)(b) was handcuffed, § 87(2)(b) stood next to the officers with a phone in her hands and told the officers not to arrest § 87(2)(b). While PO Griffin picked § 87(2)(b) up from the ground, § 87(2)(b) attempted to intervene by getting in between him and § 87(2)(b). PO Griffin responded by putting his hand out and pushing § 87(2)(b) aside by her shoulder. PO Griffin denied pushing § 87(2)(b)'s face. He did not shove her, but blocked her from interfering. This was effective in getting § 87(2)(b) to move back. She told PO Griffin that he could not touch her and that she would file a complaint for police brutality.

PO Griffin stated that he was “pretty pissed” at the time § 87(2)(b) asked about ten times, “What’s your shield and ID?” PO Griffin believed that she was speaking to both officers; however, she did not specifically address both of them. Each time she asked, PO Griffin responded with his name and shield number and told § 87(2)(b) to “get out of here.” However, she refused to leave. The last time, PO Griffin added, “Alright, get the fuck out of here.” PO Griffin did not recall if PO Coppola provided his information to § 87(2)(b).

§ 87(2)(b) did not ask for medical attention at the scene. At the stationhouse, PO Griffin and PO Coppola brought § 87(2)(b) to the back cells. He noticed that § 87(2)(b)'s shirt was torn and that he had red marks on his back. He was not bleeding. § 87(2)(b) never requested medical assistance from PO Griffin or complained about injuries and PO Griffin did not hear § 87(2)(b) request medical assistance from any other officer.

Medical Records

- § 87(2)(b)'s medical records from § 87(2)(b) note the following: § 87(2)(b) was treated on § 87(2)(b) as part of a routine follow-up appointment. The records note, “No complaints, no feeling well.” Intermittent fractures “from fighting” in 2011 were noted on § 87(2)(b)'s hands, as was a nasal fracture from fighting in 2010. The records do not note any recent physical injuries that had been sustained. (encl. d1-5)

NYPD Document(s)

- **SPRINT Report**

- A SPRINT report revealed that at 10:15 p.m. on September 28, 2011, an individual named “§ 87(2)(b)” called 911 regarding a dispute involving “yelling and cursing” at § 87(2)(b) (e1-2)

- **Arrest Report**

- § 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

- **Arrest Photograph**

- § 87(2)(b)'s arrest photograph shows no evidence of bruising or injury. (encl. b16)

- **Property Clerk Invoice**

- A Property Clerk Invoice entered by PO Griffin notes that a knife with a black handle was found on § 87(2)(b) (encl. e8)

- **Roll Call**

- The 46th Precinct roll calls from tour 3 on September 28, 2011 and tour 1 on September 29, 2011 do not list any officers assigned as cell attendants. (encl. e9-21)

- **Prisoner Holding Pen Roster**

- The Prisoner Holding Pen Rosters from September 28, 2011 and September 29, 2011 were requested from the 46th Precinct. However, the request was not fulfilled and was returned with a note stating that the Prisoner Holding Pen Rosters could not be located. (encl. f20)

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- [§ 87(2)(b)] and [§ 87(2)(b)] have not filed a Notice of Claim with the City of New York as of August 7, 2012 with regard to the incident. (encl. f1)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

■ [REDACTED]

[REDACTED]

■ [REDACTED]

[REDACTED]

■ [REDACTED]

[REDACTED]

Civilian(s) CCRB History

- [§ 87(2)(b)] has not been involved in any previous CCRB complaints. [§ 87(2)(b)] has filed the following CCRB complaints (encl. a3-4):
 - [§ 87(2)(b)]■ [REDACTED].

Subject Officer(s) CCRB History

- PO Coppola has been a member of the service for 4 years and there are no substantiated CCRB allegations against him (encl. a1).
- PO Griffin has been a member of the service for 8 years and there are no substantiated CCRB allegations against him (encl. a2).

Conclusion

Identification of Subject Officer(s)

- PO Coppola and PO Griffin admitted to interacting with [§ 87(2)(b)] and [§ 87(2)(b)]

Investigative Findings and Recommendations

Allegation A – Force: PO Kyle Coppola used pepper spray against [§ 87(2)(b)]

It is undisputed that PO Coppola used pepper spray against [§ 87(2)(b)] [§ 87(2)(b)] stated that although he made no attempt to prevent the arrest of [§ 87(2)(b)] PO Coppola sprayed him with pepper spray, making contact only with [§ 87(2)(b)]'s shirt. PO Coppola admitted that he took out his pepper spray and discharged a short burst of the spray in the air. He did not intend for the spray to make contact with [§ 87(2)(b)] and [§ 87(2)(b)] who were about 15 feet away at

the time, and he did not believe that it made contact. The spray was effective in causing them to leave the area.

An officer may use pepper spray when he reasonably believes it is necessary to protect himself or another from unlawful use of force or to effect the arrest of a subject who is resisting arrest. Pepper spray may be used in situations in which verbal commands have not been effective in overcoming physical resistance. NYPD Patrol Guide Procedure 212-95 (encl. i-ii).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation B – Force: PO Kyle Coppola struck § 87(2)(b) with a baton.

Allegation C – Force: PO Kyle Coppola used physical force against § 87(2)(b)

Allegation D – Force: PO Jeffrey Griffin used physical force against § 87(2)(b)

It is undisputed that PO Coppola struck § 87(2)(b) with a baton, and that PO Griffin made physical contact with § 87(2)(b). According to § 87(2)(b) after placing § 87(2)(b) in the car, PO Coppola struck § 87(2)(b) with a baton and, after bringing him to the ground, punched him in the back of his head. According to § 87(2)(b) during the arrest, PO Griffin pushed her face with the open palm of one of his hands and then shoved § 87(2)(b) out of the way with both hands. § 87(2)(b) stated that PO Coppola punched § 87(2)(b) “towards his face,” although she did not recall how many times and did not specify if the punches made

contact. § 87(2)(b) did not describe any force used against § 87(2)(b). PO Coppola stated that § 87(2)(b) approached him and PO Griffin near the patrol car, assumed a combative stance and refused to leave when ordered. The officers grabbed him to place him under arrest but he resisted by yelling, flailing his arms and kicking, causing all three to fall to the ground. Then, as § 87(2)(b) continued to resist by kicking and swinging his arms, PO Coppola drew his baton and struck § 87(2)(b) in non-lethal areas, including his knees and thighs. He did not recall how many times he struck § 87(2)(b) with the baton. PO Griffin corroborated that § 87(2)(b) assumed a stance as if he was going to fight the officers, with fists clenched. He stated that § 87(2)(b) resisted arrest by refusing to provide his hands, placing one hand in his waistband and falling to the ground, where he continued to withhold his hands from the officers. PO Griffin also stated that because § 87(2)(b) attempted to intervene as the officers picked up § 87(2)(b) he put his hand out and pushed her aside by her shoulder with the intention of preventing her from interfering.

An officer at the scene of a police incident must use “minimum necessary force” to overcome resistance. NYPD Patrol Guide Procedure 203-11 (encl. iii-iv).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

A photograph of § 87(2)(b) provided to the investigation by § 87(2)(b) which she stated she took the day after the incident, show bruises to § 87(2)(b)'s upper back (encl.). § 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

Allegation E – Abuse of Authority: PO Kyle Coppola refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) stated that she requested both officers' shield numbers, and that PO Coppola remained silent while PO Griffin provided his own badge number. PO Coppola stated that he did provide his shield number when asked. PO Griffin did not recall if PO Coppola provided his shield number, and he was not certain whether § 87(2)(b) had been addressing both officers when she asked for the information. § 87(2)(b) did not witness this part of the incident.

§ 87(2)(g)

Allegation F – Discourtesy: PO Jeffrey Griffin spoke rudely to § 87(2)(b)

It is undisputed that PO Griffin used a profanity toward § 87(2)(b). According to § 87(2)(b), PO Griffin told her, "Fuck you," and, "Get the fuck out of my face." PO Griffin stated that following § 87(2)(b)'s arrest, § 87(2)(b) refused to leave and stood next to the officers with a phone in her hands while repeatedly asking for his shield number, which he provided. However, PO Griffin admitted that he was "pretty pissed." After § 87(2)(b) was told ten times to leave and refused PO Griffin said, "Alright, get the fuck out of here."

According to NYPD Patrol Guide Procedure 203-09, police officers on duty must "be courteous and respectful" (encl.). An officer may not use profanity toward a civilian without a justifiable reason to do so, such as gaining compliance. NYPD v. Carey, OATH Index No. 579/99 (encl. v-ix).

§ 87(2)(g)

§ 87(2)(g)

Allegation G – Abuse of Authority: An officer did not obtain medical treatment for

§ 87(2)(b)

§ 87(2)(b) stated that in the cell area of the stationhouse, he asked an officer for medical assistance and the officer did not obtain medical treatment for him.

The 20th Precinct roll calls from the time of the incident do not list any officer as having been assigned to the cells. No Prisoner Holding Pen Roster could be obtained to identify the cell attendant. § 87(2)(b)'s description of a white male officer matches the description of various officers who may have been at the stationhouse during his time there, and he did not provide a shield number or name by which to identify the officer. Neither PO Coppola nor PO Griffin heard § 87(2)(b) request medical assistance from another officer in the stationhouse.

§ 87(2)(g)

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date